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Speeches

Second Reading of the Environmental Public Health (Amendment) Bill - Opening Speech by Dr Amy Khor

6 February 2023

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OPENING SPEECH BY DR AMY KHOR, SENIOR MINISTER OF STATE FOR SUSTAINABILITY AND THE ENVIRONMENT, FOR THE SECOND READING OF THE ENVIRONMENTAL PUBLIC HEALTH (AMENDMENT) BILL ON 6 FEBRUARY 2023

1 Mr Speaker, Sir, I beg to move, "That the Bill be now read a Second time."

INTRODUCTION

2 Since our independence, public hygiene has been a national priority. Our pioneer leaders knew that keeping Singapore clean would enhance our people's health and improve our quality of life. So, we embarked on programmes to improve public hygiene, stamp out public littering and clean up our rivers. We have come a long way. Today, Singapore is widely regarded as one of the cleanest cities in the world.

3 The COVID-19 pandemic underscored the importance of maintaining high public hygiene and sanitation standards. Maintaining public hygiene was our first line of defence in

protecting ourselves and our loved ones. Even as pandemic risks subside, we must not rest on our laurels and forget the tough lessons learnt.

4 Just as importantly, COVID-19 showed how critical our environmental services like cleaning and waste management are to the well-being of our nation. Our cleaning and waste management businesses and their workers support day-to-day functions in our economy and safeguard our population's health. Our waste management sector also plays an important role in helping Singapore achieve our zero waste ambition. We need to support our cleaning and waste management businesses and their workers, and ensure they stand ready to meet future demands while managing manpower challenges.

5 Even so, we cannot just rely on our cleaners and waste management workers to keep Singapore clean. Keeping Singapore clean is a whole-of-society responsibility that everyone must contribute to.

INTENTION OF THE BILL

6 Mr Speaker, Sir, in this context, I will introduce the Environmental Public Health (Amendment) Bill. The Bill will give effect to policies that strengthen our waste management and cleaning sectors, and ensure that maintaining a clean and hygienic living environment continues to be our collective responsibility.

UPLIFT WASTE MANAGEMENT AND CLEANING SECTORS

Implementing the Progressive Wage Model for the Waste Management Sector

7 First, we wish to uplift our resident workers in the waste management sector. In January last year, the Government accepted the Tripartite Cluster for Waste Management, or TCWM's, recommendations to introduce a Progressive Wage Model, or PWM, for the waste collection and materials recovery sub-sectors, which currently comprise around 550 firms. This will benefit some 3,000 eligible resident employees, including crew and drivers of waste collection trucks, sorters and machine operators in waste collection and recycling facilities, and supervisors performing certain roles.

8 The PWM will uplift wages and boost productivity. The TCWM, comprising unions, government agencies, and service buyers, has proposed a six-year schedule of wage increases. For instance, the entry-level baseline wage for waste collection crew will grow 8.1% annually from \$2,210 per month in 2023 to \$3,260 per month in 2028. There will also be minimum amounts and scheduled increases for overtime payments and annual bonuses. A structured career ladder, stipulating higher job roles, higher wages and minimum training requirements, will enhance career progression and prepare the industry for higher-value work.

9 The Bill gives legislative effect to the recommendations of the TCWM, and implements the PWM through the licensing regime for companies providing waste collection and materials recovery services.

10 Sections 23 and 31 are amended to require applicants for waste disposal licences and waste collector licences, each called a waste management licence, to submit a Progressive Wage Plan with their licence application. The Progressive Wage Plan will cover details on the wage components paid to workers.

11 The new Sections 23A and 31AA provide for the making of regulations to impose licence conditions relating to the training of workers and payment of progressive wages. This clearly establishes the PWM within the ambit of the EPHA and the waste management licensing regime. Sections 23A(2)(d) and 31AA(2 (d) enable the imposition of licence conditions to prohibit waste management licensees from deploying individuals for waste management work unless they are their employees or employees of other waste management licensees. This will ensure that all waste management workers can benefit from the PWM wages.

12 The new Section 31DA will require the Commissioner for Labour to specify, by way of an order, the wage-related components for each class of waste management workers under the PWM. This will provide greater clarity and certainty to the industry.

13 To effectively monitor compliance with licensing conditions including those of the PWM, the new Section 31DB empowers the Director-General of Public Health and any authorised officers to require licensees to produce relevant hardcopy or electronic records (such as wage and training records of the licensees' workers) for inspection.

Revising the Cleaning Business Licensing Framework

14 I will next elaborate on changes we will introduce to the cleaning business licensing framework to build a resilient and productive cleaning sector. The cleaning sector comprises around 1,530 licensed cleaning businesses, with a total workforce of about 53,600 cleaners. About 75% are resident workers.

15 We started on the journey to professionalise the cleaning sector as early as July 2010, when a Voluntary Accreditation Scheme was introduced. Subsequently, a licensing regime was introduced in September 2014 to mandate the minimum requirements for cleaning businesses, including the payment of PWM wages and requisite training for cleaners.

16 The pandemic has intensified the urgency for cleaning businesses to transform. With rising demands for quality cleaning services, coupled with growing manpower challenges, cleaning businesses need to deepen their competencies, adopt productivity solutions, and create better employment opportunities to attract and retain workers.

17 To build capabilities and raise public health standards of cleaning businesses, the cleaning business licensing framework will be enhanced. Key elements of the voluntary Enhanced Clean Mark Accreditation Scheme will also be merged with the current cleaning business licensing scheme into a single framework.

18 The Bill will amend Sections 80F to 80I to implement the revised cleaning business licensing framework. The revised framework will comprise three classes of licences to differentiate cleaning businesses according to their capabilities, as opposed to the current licensing regime which grants the same licence to all cleaning businesses as long as they fulfil a set of common licensing requirements. The new classes of licences will come with a 2-year validity but the application requirements (such as training, paid-up capital, bizSAFE certification and compliance history with certain written laws) for each class of licence will be different.

The Class 3 licence, which is non-renewable, retains the same requirements as the current licensing scheme without imposing any new requirements. New cleaning businesses can be granted a Class 3 licence but upon its expiry, must apply for a Class 2 or Class 1 licence to continue operating.

Class 2 licensees will need to meet the new paid-up capital and bizSAFE certification requirements that are applicable to that class of licensees. The minimum paid-up capital or net worth of \$25,000 ensures that the cleaning businesses are committed and able to pay PWM wages to their cleaners. The bizSAFE certification ensures that cleaning businesses inculcate a culture of workplace safety for its workforce.

The Class 1 licence is for cleaning businesses that want to further differentiate themselves in terms of capabilities. The Class 1 licence requires licensees to meet a higher minimum paid-up capital or net worth of \$250,000 and to ensure that their cleaning workforce is trained in additional Workforce Skills Qualifications, or WSQ modules. It provides greater assurance to service buyers that the licensees are equipped with more resources, experience and capabilities to undertake larger cleaning contracts and are committed to raising the skill level and competencies of their employees.

19 Existing cleaning businesses will be able to transit to the new framework easily with the Class 3 licence. They would have sufficient time, at least 2 years, to grow their capabilities and transit to the higher classes of licence as the revised framework will come into effect on 1 January 2024. Prior to revising the licensing framework, NEA had consulted and received support from cleaning businesses on the revised framework. NEA will continue to work closely with key stakeholders and partner agencies to ensure a smooth transition for cleaning businesses.

20 The Bill amendments will also empower the making of regulations to impose a licence condition to prohibit cleaning business licensees from deploying individuals to carry out cleaning work unless those individuals are their employees or employed by other cleaning business licensees. This will ensure that all cleaners benefit from the licensing framework and resident workers are paid PWM wages. In addition, persons who supply cleaners will be required to be licensed. Such persons include companies which supply manpower to other cleaning businesses or premises owners to carry out cleaning work.

21 The enhanced licensing framework will ensure that cleaning businesses continue to upskill their workforce and pay progressive wages, while encouraging investment in

innovation and technology to improve productivity and service delivery to boost their competitiveness and overcome manpower constraints.

22 Service buyers will benefit from better services, and can also make more informed decisions in selecting cleaning businesses, based on the service buyers' needs and scope of cleaning work that they require.

23 Currently, Government Procuring Entities are required to engage only cleaning businesses with a Clean Mark Gold Accreditation. With the revised framework incorporating key elements of the Enhanced Clean Mark Accreditation Scheme, NEA will work with the Ministry of Finance to require Government Procuring Entities to engage only cleaning businesses with a Class 1 Licence in the longer term.

ENSURE SHARED RESPONSIBILITY FOR A CLEANER LIVING ENVIRONMENT

24 Mr Speaker, Sir, I will now talk about how the Bill will encourage the sharing of responsibilities to sustain a clean living environment.

Mandating maintenance of pneumatic waste conveyance systems

25 First, on pneumatic waste conveyance systems, or PWCS. These are automated and enclosed systems that make waste collection more hygienic and efficient. Since April 2018, all new developments for strata-titled properties with 500 or more residential dwelling units are required to implement the PWCS. As the number of PWCS implemented in strata-titled developments in Singapore is expected to rise, there is a need to ensure that the equipment can be operated effectively over time.

26 Currently, the existing legislation places responsibility on building owners to maintain their waste collection systems, such as refuse lifts, chutes, and chute chambers. The PWCS, which consists of a network of pipes to convey waste by air suction to the refuse bin centre, is also an integral part of the waste collection system.

27 The Bill will repeal and re-enact Section 11 to make it clear that building owners have the responsibility to maintain their PWCS that serve the buildings, and empower the Director-General of Public Health to take enforcement actions against owners who do not maintain, repair and replace their PWCS.

Presumption clauses for littering from residential flats

28 Second, on littering from residential flats which is a persistent, growing issue that blights our heartlands, affecting many of our estates island wide. Feedback on high-rise littering has increased by over 60 per cent between 2 consecutive 3-year periods, from an average of 19,000 cases between 2017 and 2019, to an average of 31,200 cases between 2020 and 2022. NEA has conducted extensive public education and outreach with stakeholders such as the Town Councils and Grassroots Organisations, enhanced its enforcement capabilities, and increased public awareness on the environmental

consequences of high-rise littering. Despite these interventions, such a rate of increase, if allowed to persist, will be detrimental to public health – our estates risk getting increasingly dirty and unsafe, and our resources will never be enough to clean up after the offenders, or catch and enforce against them.

29 Stronger action is needed to address the root of the issue and prevent high-rise littering. We will do this by introducing presumptions, to place greater onus on owners and tenants of residential flats to prevent littering acts from being committed from their units in the first place, and when such offences have been committed for them to take greater responsibility to identify the offenders. Let me elaborate.

30 Today, when feedback is received on high-rise littering from residential flats onto any public place, NEA will first work with relevant Town Councils to issue advisories to residents in the affected block, to advise them not to commit high-rise littering from their flats. If the high-rise littering issue persists, NEA will deploy surveillance cameras to monitor the blocks and identify the unit from which high-rise littering is committed. Video footage from surveillance cameras detailing the act of high-rise littering from a specific unit is then used for focused investigations leading to enforcement action.

31 However, the investigation process can be laborious and protracted, inhibiting effective enforcement. Even if the residential units where the litter was thrown have been clearly identified from the evidence, significant effort is still needed to identify the offender before enforcement can follow. The existing provision in the Environmental Public Health Act 1987 requires flat owners to provide information on the identity of every occupant of the flat at the time of the offence and NEA may have to interview every occupant to identify the offender. Despite our best efforts, there are cases where NEA cannot identify the offender because all the occupants deny knowledge of the act. This means that even with evidence that littering has been committed from a flat, NEA is unable to take enforcement action in such cases, which undermines deterrence.

32 The Bill will insert a new Section 17A to introduce rebuttable presumptions such that, if there is clear evidence that a littering act has been committed from a residential flat, the owners, or tenants who have leased the whole residential flat, will be presumed to have committed the littering offence.

For the relevant presumption clause to take effect, the evidence would need to clearly capture the act of littering, and the flat from which the litter had originated. Images or footage captured by NEA's enforcement cameras would be our main source of evidence, but we will also accept such evidence if submitted by members of the public, subject to the quality of the evidence necessary to support our enforcement actions.

Flat owners or tenants can rebut the presumption through various means in order not to be held responsible under the presumption. Namely, a flat owner or tenant can produce evidence that he or she was not present in the flat at the time of the offence, prove that someone else had committed that offence, or provide the identity of the person whom he

or she reasonably believes to be the offender. Flat owners or tenants will be given a reasonable stipulated time period to produce such information.

This would allow for more effective enforcement, and at the same time spur flat owners and tenants to prevent their occupants from littering from their flats. The current process of issuing advisories when feedback is first received, and deploying surveillance cameras in persistent cases will not change. Even after the owner or tenant has shown that he or she was not present in the flat at the time of offence or provided the identity of the person whom the owner or tenant reasonably believes to have committed the littering, NEA will continue to investigate, including interviewing any relevant witnesses such as the other occupiers or the suspect named by the owner or tenant so as to verify the information provided.

33 NEA will ensure that our investigation process remains robust, and that the law is applied judiciously. Care will be exercised in investigating cases committed by vulnerable groups such as young children and the elderly. This is already the practice today. For the elderly or other vulnerable individuals, NEA will engage the individuals and their family members or caregivers, and work with social agencies to provide further assistance where necessary.

Enabling more effective enforcement

34 Third, we will enable more effective enforcement of the EPHA to ensure we maintain a clean and liveable environment.

35 Currently, Section 20 of the EPHA already prohibits the use of a vehicle to dump or dispose of waste in public places, which poses environmental and public health risks and is a blight on public places.

36 The Bill will amend Section 20 to make it an offence to cause or permit such illegal disposal of waste. This is necessary because there have been instances of supervisors improperly instructing their workers to illegally dispose of waste. The amendment will enable enforcement action to be taken against supervisors, and not just the workers.

37 Another amendment relates to the one-year limitation period which prevents NEA from prosecuting an accused person for offences committed under the EPHA unless it is within 1 year from the date of offence. There have been instances where NEA had been unable to enforce against an accused person within the one-year limitation period. This could have been due to protracted investigations for complex cases, or the late referral of cases by members of the public.

38 The Bill will thus amend Section 95 to extend the limitation period mentioned in that section from one year to three years to allow NEA more time to investigate complex cases. However, the time bar does not apply if, by reason of the offence complained of, an injury or danger to health subsists at the date of the complaint.

CONCLUSION

39 Mr Speaker, Sir, let me conclude. This Bill represents another milestone in our journey towards safeguarding public health and maintaining high standards of public cleanliness that Singapore is known for. We must continue to help and support our waste management and cleaning companies and workers to upgrade, transform and thrive. This will enable them to deliver high-quality services with a better skilled and engaged workforce. We must also take a firm stance against actions that create disamenities and endanger public health. Keeping our living environment clean has been, and will continue to remain a shared responsibility for all.

40 Mr Speaker, I beg to move.

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